



**PLAN
MANAGEMENT
SERVICE
AGREEMENT
& CONSENT**

NDIS PARTICIPANT NAME

Firas Toma
NDIS Plan Management
ABN. 28 723 030 483

Tel: 0432 446 966
Email: firas.toma.ndis@gmail.com
Address:

Level 2, 215-219 George St
Liverpool, NSW, 2170

SERVICE AGREEMENT

A Service Agreement can be made between a Participant and a Provider or a Participant's representative and a Provider. A Participant's representative is someone close to the Participant, such as a family member or friend or someone who manages the funding for supports under a Participant's NDIS plan.

The purpose of this agreement is to set out the terms and conditions in respect of which FIRAS TOMA will provide the Participant /Participant Representative with management of funding for supports in respect of the client's NDIS Plan.

This agreement will be in effect from the date the Participant /Participant Representative signs this agreement, and will continue for the duration of the Participant's association with FIRAS TOMA until either party terminates this agreement in accordance to the Terms and Conditions stated below.

Participant Information:

<u>Name of Participant:</u>		<u>NDIS Number:</u>	
<u>Date Of Birth:</u>		<u>Gender:</u>	☐ Male ☐ Female
<u>NDIS Plan Dates:</u>		<u>To:</u>	
<u>Contact Number:</u>		<u>Email:</u>	

Participant Representative Information:

(Must be a person recognised by the NDIA as a substitute decision maker or nominee)

<u>Full Name</u>		<u>Relationship</u>	Khklh
<u>Contact Number</u>		<u>Email</u>	
<u>Allow Access to Careview Advantage/Budget Information ("read only")</u>		☐ Yes ☐ No	

FIRAS TOMA can be contacted on:

<u>Name of the Provider:</u>	Firas Toma	<u>Phone:</u>	0432 446 966
<u>Email Address:</u>	frs.toma.ndis@gmail.com	<u>Contact Person</u>	Firas Toma
<u>Address</u>	Level 2, 215-219 George Street, Liverpool NSW 2170		

If Participant wishes to provide consent to share this Service Agreement with external providers. Provide details below (provider/participant representative/advocate/NDIS Commission):

<u>Name:</u>		<u>Phone:</u>	
<u>Email Address:</u>			
<u>Relationship:</u>			

TERMS AND CONDITIONS

I. Plan Manager responsibilities:

By signing this agreement, we agree to:

- i. Support participants with budget management and NDIS funded supports to achieve their goals and outcomes
 - a. Work collaboratively with the participant to understand the funds available
- ii. Assist participants to manage the financial aspects of their plan without seeking to further the financial, or other interests, of themselves and other third parties
- iii. Provide information and advice to participants about the management of their NDIS funding
 - a. This will be provided through monthly budget statements
 - b. Alert participants of any risks associated with plan spending on services that will exceed a participant's NDIS plan limit, or paying for a service not funded by NDIS or their plan
- iv. Demonstrate accountability in terms of practicing extensive security processes
 - a. This would be carried out through hard and soft copy storage of participant information
 - b. Using secure networks (email, internet provider) when handling private information
- v. Uphold participant rights as consumers, and in line with their plan.
 - a. Enabling a participant to exercise greater choice and control over the supports and services they engage.
- vi. Communicate to participants expenditure that cannot be paid. In times of uncertainty, advice needs to be sought by the Local Area Coordinator (LAC) or support coordinator
 - a. Plan managers do not:
 - i. Determine what is reasonable and necessary
 - ii. Decide what supports a person can access
 - b. Plan managers do:
 - i. Ensure the services provider are within budget and in accordance with the plan
 - ii. Enforce the price guide
 - iii. Support people to understand their plan and rules
 - iv. Not participate in fraud or the misuse of funds
- vii. Explain Disability Advocacy, provide a list of independent disability advocates using disability advocacy finder and support to access them
- viii. Review the Service with the client every 12 months a minimum
- ix. Give the Participant the required notice if the Provider needs to end the Service Agreement
- x. Protect the Participant's privacy and confidential information
- xi. To use Translator and Interpreter services by calling 131450
- xii. Provide supports in a manner consistent with all relevant laws, including the [National Disability Insurance Scheme Act 2013](#) and [rules](#), and the Australian Consumer Law
- xiii. Clearly explain to the Participant information about complaints handling policy and details of the provider's cancellation policy
- xiv. Clearly explain to the Participant information about Incident Management Policy and Procedure
- xv. Clearly explain to the Participant information about Abuse and Neglect Policy and procedures
- xvi. Clearly explain the Confidentiality of Information policy to the participant including withdrawal of consent
- xvii. Clearly explain the Emergency/Disaster Management and service delivery continuity processes/plans as applicable to the participant

II. Participant/Nominated Representative Responsibilities:

By signing this agreement, the client/authorised representative agrees to:

- i. Treat the Provider with courtesy and respect
- ii. Inform the Provider about how they wish the supports to be delivered to meet the Participant's needs
- iii. Talk to the Provider if the Participant has any concerns about the supports being provided
- iv. Give the Provider a minimum of 24 hours' notice if the Participant cannot make a scheduled appointment; and if the notice is not provided by then, the Provider's cancellation policy will apply
- v. Give the Provider the required notice if the Participant needs to end the Service Agreement

- vi. Let the Provider know immediately if the Participant's NDIS plan is suspended or replaced by a new NDIS plan or the Participant stops being a participant in the NDIS.
- vii. Be contacted to discuss our services and have your records reviewed by relevant third parties if required for regulatory or auditing purposes

III. Managing your Budget

- i. To assist you in keeping you updated with budget spending and funding supports, we will provide you with regular reporting via Careview Advantage App.
- ii. If we receive an invoice that is unable to be claimed, due to insufficient funding remaining in your NDIS plan, we will inform both yourself and the provider of the unsuccessful payment. You will then need to make alternative payment arrangements

IV. Plan Overspending

- i. We will provide budget information to you when requested and through Careview. Participant/Representative should check all spending and be aware of future supports to reduce risk of over spending
 - a. We will not be responsible for any plan overspending. In the case of risk of plan funds being overspent, we will contact the participant or participants Support Coordinator.

V. Changes to Service Agreement

If the Participant and the Service Provider wish to change this agreement with regard to supports and their delivery, they will mutually discuss to review the required changes and agree in writing. The reviewed Service Agreement with any changes will need to be signed and dated by both parties.

xviii. Ending Service Agreement

A notice period of (14 days) would be required if either the participant or the service provider wishes to end this Service Agreement. If either Party seriously breaches this Service Agreement the requirement of notice will be waived.

xix. Goods and Services Tax (GST)

- i. For the purposes of GST legislation, the Parties confirm that:
- ii. a supply of supports under this Service Agreement is a supply of one or more of the reasonable and necessary supports specified in the statement included, under subsection 33(2) of the National Disability Insurance Scheme Act 2013 (NDIS Act), in the Participant's NDIS plan currently in effect under section 37 of the NDIS Act;
- iii. the Participant's NDIS plan is expected to remain in effect during the period the supports are provided; and
- iv. the *[Participant / Participant's representative]* will immediately notify the Provider if the Participant's NDIS Plan is replaced by a new plan or the Participant stops being a participant in the NDIS.

xx. Feedback, Complaints and Disputes

If the Participant wishes to provide feedback or is not satisfied with the provision of supports by the service provider, the Participant can approach the organisational staff in person or on phone number: 0432 446 966 who will guide the participant through the Feedback/Complaint policy.

Alternatively, the participant can contact the NDIS Commission by calling 1800 035 544 for further information. You can also lodge complaint/feedback to NDIA on by calling 1800 800 110 or emailing feedback@ndis.gov.au

Participant can also use TIS 131450 if an interpreter is required.

xxi. Schedule of Supports

- xxii. *The description of support and price limit contained in the following Schedule of Supports will be varied from time-to-time in line with the changes to the NDIS Pricing Arrangements and Price Limits and/or documents or publications issued by the NDIA from time-to-time.*

<u>Plan Management- Establishment and Monthly Fee</u>		
Support Item	Description of Support	Price Limit
Plan Management – (Set Up Fee) 14_033_01274_8_3	An establishment fee for setting up of the financial management arrangements of funding for supports, as set in plan, for the duration of the plan	\$232.35
Plan Management- 14_034_0127_8_3	A monthly fee for the ongoing maintenance of the financial arrangements for managing funding supports	\$104.45 per month

Authority and Declaration:

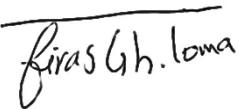
This service agreement can only be entered into by FIRAS TOMA and the Participant (but may be authorised by a participant representative on behalf of the participant).

I declare,

that I have read and that I am approved to accept the terms and conditions of this Service Agreement:

Print Name: (Participant/Representative)			
Signature: (Participant/Representative)	X	Date	

Firas Toma agrees to the terms and conditions:

Print Name: (Plan Manager)	Firas Toma		
Signature:		Date	

Participant Consent to Obtain & Share Information

This form can only be completed by the participant and/or the nominated Participant Representative that has been outlined in the service agreement.

Firas Toma Plan Management is aware of the sensitivity of the information disclosed. We collect and use personal information to ensure our services meet your individual needs and will do so in accordance with *Privacy Act 1988 (Cth)* Privacy Act and *National Disability Insurance Scheme Act 2013 (Cth)* (NDIS Act). *This information will be used for:*

- i. Administrative purposes – planning your support services
- ii. Disclosure of information to the NDIA, the NDIS Quality and Safeguards Commission or other government agencies when needed
- iii. Disclosure of information regarding the funded supports in the Participant's plan to other disability support providers in efforts to provide appropriate services.

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Consent to Sharing/Storing Personal Details.

- i. Personal details that are collected will be information that you have provided (or someone has provided on your behalf), such as your name, address, date of birth, disability, medical records etc in connection to your NDIS services provided by our organisation to you.
- ii. Your information is stored as both hard and soft copies. Electronic copies are saved in secure and password protected databases. The hard copy files are secured in locked filing cabinets which is only accessible by our staff in the organisation.
- iii. The organisation will store, retain and dispose your information as stipulated by the relevant and applicable state and territory laws as well as NDIS Commission Guidelines
- iv. Only relevant staff within the organisation will have access to your information with the sole purpose of coordinating the best support for you.

Accessing your Personal Details

- i. You may ask to access your information at any time in writing (a letter, fax or email) and you can also at any stage choose to withdraw your consent from the organisation.

Careview Database

Careview is the organisations NDIS software which helps manage participant funding. This database stores your personal details and provides the opportunity to share with approved individuals/support coordinators to provide a more efficient way to get the supports you need.

- i. Careview Advantage – an app designed for Participants and/or Participant representatives to access a read-only copy of your NDIS plan funding and budget forecast (other information will be provided such as: invoices that have been processed, support budget allocation). This information will only be provided by your approval. The participant will also have to power to approve or reject invoices.
- ii. Careview Connect – an online portal designed for Support Coordinators to allow them to view the participant's NDIS funding and budget in a read-only format. This information will only be given through your consent.

Audits

NDIS registered providers are required to be audited against the NDIS Practice Standards as part of the NDIS Quality and Safeguarding Framework. Participants of FIRAS TOMA are automatically enrolled in the audit processes and may be contacted by NDIS Auditors at the time of NDIS audit (every 18 months) to ask your feedback about 'us'. If you do not wish to be contacted then you can tick in the opt out section.

Audit Consent

- ☐ I consent to being part of the audit process
- ☐ I do not wish to be part of the audit process

Participant Declaration and Consent

- ☒ I acknowledge that the organisation has explained to me the Privacy and Confidentiality Policy and helped me understand the contents of this consent form
- ☐ I acknowledge that the organisation has explained to me that in all situations 'my consent will be sought prior to sharing any of my personal information with anyone' including when I am transitioning to or fro between services & providers.

Print Name: (Participant/Representative)			
Signature: (Participant/Representative)	X	Date:	